

No. 26-10389

May 19, 2026

UNITED STATES COURT OF APPEALS

FOR THE FIFTH CIRCUIT

KATHRYN COPELAND,

Plaintiff-Appellant

v.

TARRANT COUNTY, ET AL.,

Defendants-Appellees.

APPELLANT'S MOTION FOR RECONSIDERATION OF MAY 6, 2026 ORDER DENYING EMERGENCY MOTION FOR INJUNCTION PENDING APPEAL

On Appeal from the United States District Court for the
Northern District of Texas, Fort Worth Division
Case No. 4:25-cv-00890-O (Hon. Reed O'Connor)

Expedited Consideration Requested


KATHRYN COPELAND
Texas Bar No. 24086056
1137 S. Pine Street
Grapevine, Texas 76051
Tel: (817) 789-8498
Katie@KatieCopeland.com
Pro Se Plaintiff-Appellant

CERTIFICATE OF INTERESTED PERSONS

The undersigned counsel of record certifies that the following listed persons and entities as described in the fourth sentence of 5th Cir. R. 28.2.1 have an interest in the outcome of this case:

- Kathryn Copeland, Plaintiff-Appellant
- Tarrant County, Texas, Defendant-Appellee
- Texas Office of Court Administration, Defendant-Appellee
- Hon. Judith Wells, Defendant-Appellee
- Hon. Kenneth Newell, Defendant-Appellee
- Hon. David Evans, Defendant-Appellee
- Hon. Megan LaVoie, Defendant-Appellee
- Katherine E. Owens, Esq., counsel for Tarrant County
- Stephen A. Lund, Esq., counsel for Tarrant County

No publicly traded corporation has an interest in this proceeding.

A handwritten signature in cursive script that reads "Kathryn Copeland".

KATHRYN COPELAND

I. PROCEDURAL POSTURE

Appellant timely filed her Petition for Rehearing on May 13, 2026, within fourteen days of this Court's May 6, 2026 Order. By BR-9 Letter dated May 15, 2026, the Court advised that "petition for rehearing or petition for rehearing en banc may not be filed for review of non-dispositive panel orders" and that "[a] motion for reconsideration is the only avenue for review." Appellant respectfully refiles the substance of her timely-filed papers as a Motion for Reconsideration in accordance with the Clerk's advisement, and respectfully requests that this Motion be deemed timely as relating back to the May 13, 2026 filing.

II. INTRODUCTION

On May 6, 2026, a panel of this Court denied Appellant's Emergency Motion for Injunction Pending Appeal by a two-to-one vote. Judge Haynes filed a separate position stating she would have granted the motion temporarily and carried it with the case for the merits panel. The denial was per curiam and contained no analysis of likelihood of success, irreparable harm, or the equities. It did not address Tarrant County's own written admissions — by multiple officials, over a multi-year period — that no Title II coordinator, no grievance procedure, and no compliance audit exists for participation-related accommodations in Tarrant County judicial proceedings. It did not address the structural distinction between Appellant's process-based relief request and a traditional substantive injunction.

That 2-1 division is not a close call on a difficult question. It is a documented institutional failure — proved by the County itself, in writing — that one member of the panel concluded warranted immediate relief. The two members denying offered no explanation for the opposite conclusion.

This motion presents two related and recurring questions that this Court has not resolved. **First**, whether Title II of the Americans with Disabilities Act, as construed in *Tennessee v. Lane*, 541 U.S. 509 (2004), requires a public entity to maintain a functioning, neutral administrative pathway for participation-related accommodation requests in judicial proceedings — and whether a documented structural void in that pathway supports injunctive relief. **Second**, whether the structural-access failure pleaded here, and the nonparty interference now pleaded in Appellant's contemporaneously filed federal action — *Copeland v. Weinstein Management Co., Inc., et al.*, No. 4:26-cv-585-O-BP (N.D. Tex.) (O'Connor, J., May 13, 2026) — fall within 42 U.S.C. § 12203(b), the ADA's anti-interference provision Congress enacted in 1990 but for which this Court has not yet articulated a complete test.

The questions are no longer theoretical. In the thirteen days since the May 6 denial, the structural Title II void this motion sought to address has produced the very harms the motion described — and, on May 18, 2026, a named Defendant-

Appellee dismissed Appellant's state court case on a finding that official eFiling records directly contradict:

- On May 6, 2026, hours after this Court's denial, counsel of record for two non-party Weinstein corporate entities filed an unauthorized amicus brief in *Copeland v. Decker*, 236-363132-25 (236th JDC Tarrant County), expressly directed at Appellant's ADA accommodation requests in that judicial proceeding.
- On May 8, 2026, Tarrant County Local Administrative Judge Kenneth Newell — a named Defendant-Appellee in this proceeding — converted the earlier-scheduled in-person hearing in *Decker* into a written-submission proceeding with a May 15, 2026 5:00 p.m. CDT deadline, into which the unauthorized amicus brief had already been received without any Title II accommodation pathway to challenge or exclude it.
- On May 13, 2026, Appellant filed a new federal civil-rights action in the Northern District of Texas pleading 42 U.S.C. § 12203(b) interference based, in part, on the May 6 amicus filing and on the structural Title II void at issue in this appeal.
- On May 18, 2026, Judge Newell — a named Defendant-Appellee in this proceeding — signed an order dismissing *Copeland v. Decker*, Cause No. 236-363132-25, on a finding that "no such permission was requested or granted."

That finding is directly contradicted by Tyler eFiling Envelope ID 112653256, which documents that Appellant's Motion for Permission to Maintain Litigation was electronically filed on March 19, 2026 at 7:11:52 PM CST and served on all parties.

Grant reconsideration now and this Court is positioned to address the structural Title II question presented here and to articulate the § 12203(b) test in the procedural posture for which the statute was designed: a documented institutional access failure compounded by targeted, post-notice interference by sophisticated defendants. Deny reconsideration and the same questions return through the new federal action after district-court adjudication, with intervening harm to Appellant and to the doctrinal framework in the meantime.

III. BACKGROUND

A. The Structural Access Failure

Tarrant County did not, and does not, have a designated ADA Title II coordinator for judicial proceedings, no published grievance procedures specific to participation-related accommodations, and no compliance audit. This is not Appellant's contested allegation. It is confirmed by the County's own officials in writing over a multi-year period:

- April 1, 2026 — Travis Yarbrough, Assistant County Administrator: ADA accommodation requests for court proceedings are not the County's

responsibility; the matter is 'considered closed.'

- April 21, 2026 — Open Records Response CDA-2026-897: No designated ADA Title II coordinator for judicial proceedings; no applicable grievance procedures; no compliance audit.
- April 30, 2026 — Tarrant County Criminal District Attorney's Office (Phil Sorrells; Katherine E. Owens): The County has no control over a judge's ADA accommodation decisions; Appellant's concerns are 'not properly presented to Tarrant County.'

This is not a record of accommodation delay, inadequate process, or disputed reasonableness. It is a record of a structural void. The County's position — stated in writing by multiple officials — is that court-participation accommodations fall into the gap between the County (which it characterizes as responsible only for physical access) and individual judges (whom the County characterizes as not subject to County administrative authority). No one is responsible. No one is accountable. 28 C.F.R. § 35.107 has required the opposite since 1992.

B. The Appellant

Appellant Kathryn Copeland is a Texas-licensed attorney (State Bar No. 24086056) with documented disabilities including vestibular schwannoma (a brain tumor on the vestibulocochlear nerve), traumatic brain injury, postural orthostatic tachycardia syndrome, hypermobile Ehlers-Danlos syndrome, mast cell activation

syndrome, Long COVID, and intracranial hypotension. On April 10, 2026, the Social Security Administration issued a Notice of Decision — Fully Favorable (ALJ Laura Roberts) adjudicating Appellant disabled within the meaning of the Social Security Act with an established onset date of June 8, 2023 — a date that predates the proceedings now on appeal and covers the entire period during which those proceedings took place.

Appellant requested accommodations that the Texas State Bar's own Courtroom Accessibility Guide (created by Defendant-Appellee Office of Court Administration) lists as achievable and appropriate — CART captioning, written submission in lieu of oral argument, legal assistance. Tarrant County courts denied them, with no written determination, no coordinator, and no interactive process. The trial court stated on the record: 'We're not going to do that.'

C. The Motion and the May 6 Denial

Appellant filed the Emergency Motion for Injunction Pending Appeal on May 4, 2026, under Federal Rule of Appellate Procedure 8(a). The motion was deliberately narrow: it sought only that a functioning Title II administrative pathway exist, and that a written determination on accommodation requests issue, before a then-scheduled May 8, 2026 Tarrant County hearing continued. It did not ask this Court to decide the merits of any state-court matter or to direct any judge to rule in a particular way.

On May 6, 2026, the panel denied the motion in a single sentence. Judge Haynes filed a separate position stating she would grant the motion temporarily and carry it with the case for the merits panel to decide whether to maintain the injunction pending appeal.

IV. POST-MAY 6 DEVELOPMENTS THAT MATERIALIZE THE HARM

Since the May 6 denial, the following material facts have developed:

A. May 6, 2026 — Direct § 12203(b) Interference in Decker

Hours after this Court's May 6 denial, Glynis L. Zavarelli and Michelle S. Sortor of Wentz & Zavarelli, L.L.P., filed in *Copeland v. Decker*, Cause No. 236-363132-25, 236th JDC Tarrant County, an unauthorized nonparty 'Amicus Brief to the Court Regarding Kathryn Copeland's Requests for Accommodations Under the ADA.' The brief was filed by counsel of record for Weinstein Management Co., Inc., and WMCi Dallas X, LLC — entities that are not parties to the Decker matter. The transmittal letter expressly states the filing's purpose: to protect Weinstein's position in its separate adversarial litigation against Appellant in another Tarrant County forum.

That filing is interference within the meaning of 42 U.S.C. § 12203(b) as this Court construed § 12203(b) in *Strife*. It was directed at Appellant's exercise of ADA

accommodation rights in a judicial proceeding. It was filed by counsel of record for entities with no amicus standing. And it was filed precisely because the Tarrant County structural access framework — the same framework this Court declined to address on May 6 — provides no mechanism to recognize, exclude, or remedy such interference.

B. May 8, 2026 — The Newell Conversion to Written Submission

On May 8, 2026, the court coordinator for the 233rd Judicial District Court (Tarrant County) notified the parties that Defendant-Appellee Judge Kenneth Newell — sitting as Local Administrative Judge of Tarrant County and reviewing the motion to recuse the trial judge (Defendant-Appellee Hon. Judith Wells) under Texas Family Code § 11.102 — had cancelled the in-person hearing previously set for May 8 and would instead consider all submissions on written briefing with a May 15, 2026 5:00 p.m. CDT deadline. The May 6 unauthorized amicus brief was already in the record before Judge Newell when the conversion occurred. Appellant has been required to respond to that interference through the same Tarrant County system whose Title II accessibility this Court declined to address on May 6.

C. May 13, 2026 — Filing of the New Federal § 12203(b) Action

On May 13, 2026, Appellant filed *Copeland v. Weinstein Management Co., Inc., et al.*, No. 4:26-cv-585-O-BP, in the Northern District of Texas, assigned to the Honorable Reed O'Connor as a related case to the action on appeal here. The new federal complaint pleads § 12203(b) interference based on, among other things, the May 6 amicus filing. The case is at the pleading stage. The narrow Decker-amicus interference theory it asserts is exactly the theory Strife recognized.

D. May 18, 2026 — The Newell Dismissal: A Named Defendant-Appellee Acts on a False Finding

At the time of this Court's May 6 denial, Appellant had a pending Motion for Permission to Maintain Litigation and Motion to Vacate Order Declaring Kathryn Copeland a Vexatious Litigant in *Copeland v. Decker*, Cause No. 236-363132-25, 236th JDC Tarrant County. Both motions were filed on March 19, 2026 through the Tyler eFiling system, documented by Envelope ID 112653256, timestamp 3/19/2026 at 7:11:52 PM CST, status: SENT to all parties. The February 26, 2026 vexatious litigant order had required Appellant to obtain pre-filing permission from the local administrative judge by March 19, 2026. Appellant complied.

The local administrative judge with authority over that permission request is the Honorable Kenneth E. Newell, Local Administrative Judge, 233rd District Court, Tarrant County. Judge Newell is a named Defendant-Appellee in this proceeding,

sued in his individual and official capacity for the same systemic Title II structural failures at issue in this appeal.

On May 15, 2026 — the same day Appellant filed this motion — Appellant emailed Angie D. Wierzbicki, Court Coordinator for the 233rd Judicial District Court, identifying the pending permission and vacatur motions and requesting that Judge Newell address them on the merits. Court Coordinator Wierzbicki acknowledged receipt the same day.

On May 18, 2026, three days after Appellant filed this motion and after three days of notice that the permission motion was pending, Judge Newell signed an Order Denying Vexatious Litigant Kathryn Copeland's Motion for Permission to Maintain Litigation and dismissed the Decker case. The order states: "The Court finds that no such permission was requested or granted." That finding is directly contradicted by Tyler eFiling Envelope ID 112653256 and by Appellant's May 15 communication to Judge Newell's own court coordinator — acknowledged by her — expressly identifying the pending motion. The Motion to Vacate the Vexatious Litigant Order was never ruled upon.

This is the § 12203(b) interference pattern this motion has documented: within seven days of this Court's May 6 denial, Weinstein corporate entities filed an unauthorized amicus in the Decker proceeding; Judge Newell converted the hearing to written submission admitting that brief; and Judge Newell — a named defendant

in this federal proceeding — dismissed the case on a finding that official eFiling records refute. The same structural void that prevented any Title II challenge to the unauthorized amicus brief provided no mechanism to prevent a conflicted adjudicator from dismissing the case three days after Appellant sought federal reconsideration.

E. Intervening Concrete Harm to Appellant and Her Children

In the seven days since this Court's May 6 denial, the following concrete harms — each foreseeable on May 6 and described in the underlying motion — have materialized or compounded:

- Appellant's interim housing is terminating this week. Appellant has been homeless since October 27, 2025 and faces displacement from her current Airbnb without alternative housing in place.
- Appellant's older daughter Q.C., age 14, has been notified that she will receive an academic award at her 8th Grade Ceremony on May 21, 2026 — the same date as Appellant's younger daughter P.C.'s 5th Grade Graduation. Appellant cannot attend either event because of a 500-yard restriction imposed in the same state-court proceedings to which she was denied accommodated access.
- P.C., age 10, was evaluated on May 4, 2026 and found to be at the 3rd percentile for weight-for-age. Q.C. remains under active cardiology follow-

up with resting heart rate of 113 BPM and LDL of 147. Both children's medical conditions continue to compound under a status quo that has been protected from review by the same Title II access failures pleaded here.

- Appellant is at risk of losing health insurance and academic resources tied to continued theology enrollment, on which her ability to continue this litigation — itself part of the access framework Title II is designed to protect — substantially depends.

These are not extraneous appeals to sympathy. They are the irreparable harm the underlying motion described. They occurred or compounded in the seven days following the May 6 denial. The structural Title II void identified in the motion — and confirmed in writing by Tarrant County — has now produced the harm the motion sought to prevent.

V. GROUNDS FOR PANEL RECONSIDERATION

A. The Panel's One-Sentence Denial Provides No Basis for Determining the Standard Applied

A motion for reconsideration is appropriate where the panel has overlooked or misapprehended a material point of law or fact. Where the panel issues a per curiam denial of a contested motion involving documented federal statutory and constitutional violations, and where one member of the panel applying the same record concludes relief is warranted, the absence of any explanation is itself a basis

for reconsideration. There is no record on which the parties or the merits panel can evaluate whether the standard applied was *Nken* or something more demanding, whether the sliding-scale framework of *Planned Parenthood of Greater Texas Surgical Health Services v. Abbott*, 734 F.3d 406, 410 (5th Cir. 2013), was applied, or whether the process-based nature of the relief requested affected the analysis.

B. Judge Haynes's Separate Position Establishes That the Nken Standard Was Met

Judge Haynes — one of the three judges who heard the motion — applied the same *Nken* standard to the same record and concluded the motion should be granted temporarily. That conclusion is the most credible available evidence that likelihood of success on the merits was at least substantial, that irreparable harm was shown, that the balance of equities favored relief, and that the public interest in Title II compliance counted in Appellant's favor. Where the sliding-scale framework is in effect, the panel's silence on why it reached the opposite conclusion is itself reviewable error.

C. The Motion Sought Process-Based, Not Substantive, Relief

The motion did not seek damages, reversal of any state-court order, or direction of any judicial decision. It sought only that a functioning Title II administrative pathway exist before a proceeding continued. Under *Tennessee v. Lane*, 541 U.S. 509 (2004), the right of meaningful access to judicial proceedings is

a fundamental right protected by Title II. Where the violation is structural — not the denial of a particular accommodation, but the absence of any process — the appropriate remedy is process-based and prospective. The panel's denial does not address whether this distinction affected the analysis. It should have.

VI. THE QUESTION PRESENTED WARRANTS RECONSIDERATION AS A MATTER OF EXCEPTIONAL IMPORTANCE

A. The Question Presented Is of Exceptional Importance and Recurring

The question this case presents — whether Title II requires a public entity to maintain a functioning, neutral administrative pathway for participation-related accommodation requests in judicial proceedings, and whether a documented structural void in that pathway supports injunctive relief — affects every disabled person who appears in any state court in this Circuit. Tarrant County is the third-largest county in Texas. Its written position — that participation accommodations are no one's responsibility — is, if accepted, a template that every public entity in this Circuit may adopt to avoid Title II accountability. If the County's position is correct, the ADA's promise of meaningful access to courts becomes unenforceable in the very setting Congress most clearly addressed it to. *Tennessee v. Lane*, 541 U.S. at 531. This Court should not allow that interpretation to stand without reconsideration.

***B. The Anti-Interference Provision of the ADA — Section 12203(b) —
Remains Without an Articulated Test in This Circuit***

The ADA's anti-interference provision, 42 U.S.C. § 12203(b), provides that "[i]t shall be unlawful to coerce, intimidate, threaten, or interfere with any individual in the exercise or enjoyment of, or on account of his or her having exercised or enjoyed . . . any right granted or protected by [the ADA]." Congress enacted that provision in 1990. The Seventh Circuit has applied it with a four-element test that includes a discriminatory-intent requirement. *Frakes v. Peoria Sch. Dist.* No. 150, 872 F.3d 545, 551 (7th Cir. 2017). The Ninth and D.C. Circuits have applied it subject to a limiting principle. *Brown v. City of Tucson*, 336 F.3d 1181, 1192 (9th Cir. 2003); *Menoken v. Dhillon*, 975 F.3d 1, 11 (D.C. Cir. 2020). This Court has not yet articulated its own test.

In *Strife v. Aldine Independent School District*, 142 F.4th 332 (5th Cir. 2025), this Court engaged the statute in a published opinion and acknowledged that "[w]hile this court has not yet articulated a test for evaluating ADA interference claims, the cause's requirements can be derived from the statutory text." *Id.* at 348. The Court derived three statutory elements from the text but expressly declined to write a complete test, observing that the plaintiff had relegated her argument to a single footnote and had not developed a record warranting articulation of the full framework. *Id.* at 348 & n.5. The Court did, however, clarify that interference can

exist independent of an employer response "on account of" protected activity — and gave as an example an employer who makes the accommodation-request process structurally inaccessible. *Id.* at 347 n.5.

That footnote describes, with precision, two of the central factual predicates in this matter: (1) the Tarrant County structural Title II void, and (2) the unauthorized nonparty amicus filing by the Weinstein-related Defendants in the Decker action — conduct directed at Appellant's ADA accommodation requests in a judicial proceeding to which those Defendants are not parties, filed hours after this Court's May 6 denial here. Appellant has pleaded both factual predicates: the structural-access claim in this appeal, and the post-notice nonparty interference in *Copeland v. Weinstein Management Co., Inc., et al.*, No. 4:26-cv-585-O-BP (N.D. Tex.) (O'Connor, J.), filed May 13, 2026. Granting reconsideration now permits this Court to articulate the § 12203(b) test in the procedural posture for which the statute was designed: a documented structural access failure compounded by targeted, post-notice interference by sophisticated, on-notice defendants. Denying reconsideration leaves the test to be articulated piecemeal, in pieces of cases that may not present the full doctrinal picture.

C. Children's Rights and the Cost of Inaction

Two children — ages 10 and 14 — are also affected by the access failure at issue. Both have documented medical conditions. Both have been the subject of

state-court proceedings in which their disabled parent could not meaningfully participate because no accommodation pathway existed. The state-court orders that flowed from those inaccessible proceedings now restrict Appellant's attendance at ordinary school events — Field Day (5/15/26), 5th grade performance (5/20/26), 8th grade awards and 5th grade graduation (5/21/26)— that other parents attend without question. Title II protects court access for the parties before the court. Where the parties before the court are parents of minor children, the children's interests are not incidental. They are the substance of what the proceeding is for. The structural Title II void this case presents is, among other things, a structural failure of meaningful access to family-law adjudication in the largest Texas county in this Circuit.

VII. PRAYER FOR RELIEF

For the foregoing reasons, Appellant respectfully requests that this Court:

- **Grant reconsideration of the May 6, 2026 Order** and, on reconsideration, grant the underlying Emergency Motion for Injunction Pending Appeal, requiring Defendants-Appellees to establish a functioning Title II ADA administrative pathway for participation-related accommodation requests before any further proceedings continue in the Tarrant County matters identified in the underlying motion and the post-May 6 record described above;

- **In the alternative**, remand to the district court with instructions to expedite adjudication of Plaintiff's Title II structural-access claim, including specific findings on whether Tarrant County's documented absence of a designated Title II coordinator, grievance procedure, and compliance audit for participation-related accommodation requests in judicial proceedings violates 42 U.S.C. § 12132 and 28 C.F.R. § 35.107;
- **In the further alternative**, set a date certain by which this Court will rule on the underlying Emergency Motion in light of the post-May 6 developments described in Part III above; and
- Grant such other and further relief as this Court deems just and appropriate.

Respectfully Submitted,



KATHRYN COPELAND

State Bar No. 24086056

1137 S. Pine Street

Grapevine, Texas 76051

Tel: (817) 789-8498

Katie@KatieCopeland.com

Pro Se Plaintiff-Appellant

CERTIFICATE OF COMPLIANCE

This motion complies with the type-volume limitation of Fed. R. App. P. 27(d)(2)(A), which limits motions to 5,200 words, because it contains 3,649 words, excluding the parts exempted by Fed. R. App. P. 32(f).

This motion complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because it has been prepared in a proportionally spaced typeface using Microsoft Word in Times New Roman 14-point font, double-spaced.



KATHRYN COPELAND

CERTIFICATE OF SERVICE

I certify that on May 19, 2026, a true and correct copy of the foregoing Emergency Motion was filed with the Clerk of the Court using the Fifth Circuit's pro se filing system and served on counsel for Defendants–Appellees via email as follows:

Katherine E. Owens: KEOwens@tarrantcountytexas.gov

Stephen A. Lund: SALund@tarrantcountytexas.gov



KATHRYN COPELAND

No. 26-10389
IN THE UNITED STATES COURT OF APPEALS
FOR THE FIFTH CIRCUIT
KATHRYN COPELAND,
Plaintiff-Appellant,
v.
TARRANT COUNTY, ET AL.,
Defendants-Appellees.

EXHIBIT LIST

Appellant's Motion for Reconsideration of May 6, 2026 Order

Ex.	Document	Date	Relevance / Motion Reference
A	Tyler eFiling Certificate — Envelope ID 112653256	March 19, 2026	Directly refutes the central factual finding in the May 18, 2026 dismissal order. See Motion § III.D (Post-May 6 Developments, May 18).
B	May 15, 2026 Email to Angie D. Wierzbicki, Court Coordinator, 233rd JDC	May 15, 2026	Establishes that Judge Newell's court had actual notice of the pending permission motion three days before the dismissal order was signed. See Motion § III.D.
C	Order Denying Motion for Permission to Maintain Litigation — May 18, 2026	May 18, 2026	Contains the factually incorrect finding that is the subject of the May 18 development section and illustrates the structural conflict-of-interest that Title II's administrative pathway requirement is designed to prevent. See Motion § III.D.

Ex.	Document	Date	Relevance / Motion Reference
D	Tarrant County Written Admissions — Three Officials, Three Dates	April 1 / April 21 / April 30, 2026	Constitutes the County's own written admissions establishing the structural Title II void. These three documents are cited throughout the motion as the evidentiary foundation for the accommodation-pathway claim. See Motion § II.A (Background).
E	Unauthorized Amicus Brief of Weinstein Corporate Entities — Filed in Decker	May 6, 2026	Foundational evidence for the § 12203(b) interference claim — a nonparty with adverse interests in separate litigation filed an amicus brief targeting Appellant's ADA accommodation rights in a judicial proceeding, using the same structural void that provides no mechanism to exclude it. See Motion §§ I (Introduction), III.A, III.D.
F	SSA Notice of Decision — Fully Favorable (ALJ Laura Roberts)	April 10, 2026	Establishes documented disability status with an onset date that predates and covers the entire period of the state-court proceedings in which accommodations were denied. See Motion § II.B (The Appellant).

Exhibits A through F follow as separate cover-sheeted attachments.

No. 26-10389 — Copeland v. Tarrant County, et al.
United States Court of Appeals for the Fifth Circuit

Attachment to Appellant's Motion for Reconsideration — May 19, 2026

EXHIBIT A

Tyler eFiling Certificate — Envelope ID 112653256

March 19, 2026

Description:

Tyler eFiling Envelope ID 112653256, timestamp 3/19/2026 at 7:11:52 PM CST, status: SENT to all parties of record. Documents the timely filing of Appellant's Motion for Permission to Maintain Litigation and Motion to Vacate Order Declaring Kathryn Copeland a Vexatious Litigant, directly contradicting Judge Newell's May 18, 2026 finding that "no such permission was requested."

Relevance:

Directly refutes the central factual finding in the May 18, 2026 dismissal order. See Motion § III.D (Post-May 6 Developments, May 18).

Attach original document immediately behind this cover sheet.

NO. 236-363132-25

KATHRYN COPELAND,	§	IN THE DISTRICT COURT
Plaintiff	§	
	§	
v.	§	
	§	
KELLY DECKER, individually	§	236th JUDICIAL DISTRICT
And d/b/a KELLY DECKER	§	
LAW, PLLC, and	§	
formerly d/b/a DECKER POOLE,	§	
jointly and severally,	§	
Defendants	§	TARRANT COUNTY, TEXAS

PLAINTIFF'S MOTION FOR PERMISSION TO MAINTAIN LITIGATION**To the Honorable Kenneth Newell, Local Administrative Judge:**

Kathryn M. Copeland, State Bar No. 24086056, appearing pro se as a licensed Texas attorney, respectfully submits this Motion for Permission to Maintain Litigation and, in the alternative, this notice regarding the inapplicability of the prefiling order at issue. She is complying with the February 26, 2026 Order of the 236th Judicial District Court under protest and without waiving her position that both underlying vexatious litigant orders are void ab initio.

I. COMPLIANCE UNDER PROTEST — THE PREFILING ORDER IS VOID

The February 26, 2026 Order in Cause No. 236-363132-25 directs Ms. Copeland to comply with the **January 21, 2025 Order** in Cause No. 231-686108-

Automated Certificate of eService

This automated certificate of service was created by the eFiling system. The filer served this document via email generated by the eFiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Envelope ID: 112653256

Filing Code Description: Notice

Filing Description: PLAINTIFF???S NOTICE OF RE-FILING OF PREVIOUSLY REJECTED PRESERVATION FILINGS

Status as of 3/23/2026 8:17 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
Kelly Decker	24048427	kelly@deckerpoole.com	3/19/2026 7:11:52 PM	SENT
Kelly WDecker		kelly@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Kelly WDecker		kelly@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Kelly WDecker		kelly@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Dawn Livingston		dawnL@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Dawn Livingston		dawnL@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Dawn Livingston		dawnL@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Patrick L.Dooley		patrick@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Patrick L.Dooley		patrick@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Patrick L.Dooley		patrick@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Trisha Pizano		trisha@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Dianna Herrera		office@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Dianna Herrera		office@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Dianna Herrera		office@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Kelly Decker		kelly@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Brianna Pizano		Brianna@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Kathryn Copeland		kcopelandlaw@gmail.com	3/19/2026 7:11:52 PM	SENT
Brenda Rios		brenda@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Brenda Rios		brenda@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT
Brenda Rios		brenda@kellydeckerlaw.com	3/19/2026 7:11:52 PM	SENT

No. 26-10389 — Copeland v. Tarrant County, et al.
United States Court of Appeals for the Fifth Circuit

Attachment to Appellant's Motion for Reconsideration — May 19, 2026

EXHIBIT B

**May 15, 2026 Email to Angie D. Wierzbicki, Court Coordinator,
233rd JDC**

May 15, 2026

Description:

Email from Appellant to Angie D. Wierzbicki, Court Coordinator for the 233rd Judicial District Court (Judge Newell's court), sent 4:57 PM CST on May 15, 2026 — the same day Appellant filed this motion. The email expressly identifies the pending Motion for Permission to Maintain Litigation and the Motion to Vacate the Vexatious Litigant Order and requests a ruling on both. Court Coordinator Wierzbicki acknowledged receipt the same day.

Relevance:

Establishes that Judge Newell's court had actual notice of the pending permission motion three days before the dismissal order was signed. See Motion § III.D.

Attach original document immediately behind this cover sheet.

No. 26-10389 — Copeland v. Tarrant County, et al.

**RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at
1:30 PM — Please Bring to Judge's Attention**

From Angie D. Wierzbicki <ADWierzbicki@tarrantcountytexas.gov>
To katie@copelandlawtexas.com
CC Michelle Sortor <msortor@wandzlaw.com>, Dawn Livingston <dawnl@kellydeckerlaw.com>,
Kelly Decker <kelly@kellydeckerlaw.com>, Glynis Zavarelli <gzavarelli@wandzlaw.com>
Date Monday, May 18th, 2026 at 8:12 AM

Good morning,

This has been received. Thank you.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



*****PLEASE NOTE: YOU MUST PROVIDE LOCAL COURT RULE
DOCUMENTS IF YOU ARE SET FOR A HEARING IN EITHER COURT.
FAILURE TO PROVIDE LOCAL COURT RULE DOCUMENTS COULD
RESULT IN THE RESET OF YOUR CASE*****

PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND "REPLY ALL" WHEN REPLYING.

EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Wierzbicki:

Please bring the following to Judge Newell's attention before the 5:00 p.m. deadline today:

1. **Plaintiff's pending Motion to Vacate Order Declaring Kathryn Copeland a Vexatious Litigant and Motion for Permission to Maintain Litigation (both filed March 19, 2026) are dispositive of the matters now before the Court.** A ruling on those motions on the merits would resolve the procedural posture and moot any further briefing on the May 6, 2026 amicus filing, its May 15, 2026 supplementation, and Defendant Decker's May 15, 2026 objection. Plaintiff respectfully requests that Judge Newell rule on those motions.
2. In the alternative, if a ruling on those motions is not forthcoming and a response to the May 15, 2026 submissions is required, Plaintiff respectfully requests a brief extension through Wednesday, May 20, 2026 to file a written response. The May 15 submissions were transmitted today (the Wentz & Zavarelli letter at 2:37 p.m.) and raise substantive matters Plaintiff has not had a reasonable opportunity to address before today's 5:00 p.m. deadline.

Thank you for bringing this to Judge Newell's attention.

KATHRYN "KATIE" COPELAND

ATTORNEY · AUTHOR · ACCESS ARCHITECT

• [\(817\) 789-8498](tel:(817)789-8498) • Katie@KatieCopeland.com • KatieCopeland.com

]]]]

FEATURED PUBLICATION

[Access Is Not Advantage: Structural Integrity and Disability
Accommodation in State Courts](#)

American Bar Association · 2026

On Friday, May 15th, 2026 at 3:45 PM, Katie Copeland <katie@copelandlawtexas.com> wrote:

Ms. Sortor and Ms. Zavarelli:

To ensure correspondence is directed to the proper counsel, please confirm that Wentz & Zavarelli, L.L.P. is authorized to act on behalf of Weinstein Management Co., Inc. and WMCI Dallas X, LLC in connection with this matter.

Respectfully,

Katie Copeland

ATTORNEY · AUTHOR · ACCESS ARCHITECT

• [\(817\) 789-8498](tel:(817)789-8498) • Katie@KatieCopeland.com • KatieCopeland.com

□ □ □ □

FEATURED PUBLICATION

[Access Is Not Advantage: Structural Integrity and Disability
Accommodation in State Courts](#)

American Bar Association · 2026

On Friday, May 15th, 2026 at 3:37 PM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

You're welcome.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Thank you for your confirmation.

Regards,

Michelle Sortor

Michelle S. Sortor

Wentz & Zavarelli, L.L.P.

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665 – 9100 – Telephone

(469) 262 – 2078 – Direct Line

(469) 665 – 9106 – Facsimile

From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Friday, May 15, 2026 3:26 PM

To: Michelle Sortor <msortor@wandzlaw.com>; Dawn Livingston <dawnl@kellydeckerlaw.com>

Cc: Katie Copeland <katie@copelandlawtexas.com>; Kelly Decker <kelly@kellydeckerlaw.com>;
Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM —
Please Bring to Judge's Attention

Good afternoon,

This has been received. Thank you.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND "REPLY ALL" WHEN REPLYING.

From: Michelle Sortor <msortor@wandzlaw.com>

Sent: Friday, May 15, 2026 2:37 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>; Dawn Livingston <dawnl@kellydeckerlaw.com>

Cc: Katie Copeland <katie@copelandlawtexas.com>; Kelly Decker <kelly@kellydeckerlaw.com>; Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM — Please Bring to Judge's Attention

EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Wierzbicki,

Attached, please find correspondence for Judge Newell's consideration in this matter.

Regards,

Michelle Sortor

Michelle S. Sortor

Wentz & Zavarelli, L.L.P.

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665 – 9100 – Telephone

(469) 262 – 2078 – Direct Line

(469) 665 – 9106 – Facsimile

From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Friday, May 15, 2026 1:42 PM

To: Dawn Livingston <dawnl@kellydeckerlaw.com>

Cc: Katie Copeland <katie@copelandlawtexas.com>; Kelly Decker <kelly@kellydeckerlaw.com>;

Michelle Sortor <msortor@wandzlaw.com>; Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM —
Please Bring to Judge's Attention

Good afternoon,

To the best of my knowledge, it was Ms. Copeland's Motion for Permission to Maintain Litigation.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND "REPLY ALL" WHEN REPLYING.

From: Dawn Livingston <dawnl@kellydeckerlaw.com>

Sent: Friday, May 15, 2026 10:45 AM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Katie Copeland <katie@copelandlawtexas.com>; Kelly Decker <kelly@kellydeckerlaw.com>; msortor@wandzlaw.com; Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM — Please Bring to Judge's Attention

EXTERNAL EMAIL ALERT! Think Before You Click!

Good morning,

What exactly was set last Friday, May 8th for hearing?

Also, can you include me on all future emails.

Thank you for your help.

Dawn Livingston, *Paralegal*

Kelly Decker Law, PLLC

6490 Camp Bowie Blvd.

Fort Worth, Texas 76116

www.kellydeckerlaw.com

T: (817) 348-9060

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This email message is for the sole use of the intended recipient(s) and may contain confidential and privileged information. Any unauthorized review, use, disclosure, or distribution is prohibited. If you are not the intended recipient, please contact the sender by reply to this email and destroy all copies of the original message.

From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Friday, May 8, 2026 10:32:43 AM (UTC-06:00) Central Time (US & Canada)

To: Katie Copeland <katie@katiecopeland.com>; msortor@wandzlaw.com <msortor@wandzlaw.com>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; gzarelli@wandzlaw.com <gzarelli@wandzlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM — Please Bring to Judge's Attention

Good morning,

Judge Newell has asked that all parties submit everything (requests/responses/briefs, etc.) to be considered to him no later than 5 p.m. on May 15, 2026, and he will consider everything by submission after that date.

The hearing at 1:30 p.m. shall be removed.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND "REPLY ALL" WHEN REPLYING.

From: Katie Copeland <katie@katiecopeland.com>

Sent: Friday, May 8, 2026 9:21 AM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM —
Please Bring to Judge's Attention

You don't often get email from katie@katiecopeland.com. [Learn why this is important](#)

EXTERNAL EMAIL ALERT! Think Before You Click!

Does that mean the setting is cancelled?

ATTORNEY · AUTHOR · ACCESS ARCHITECT

• [\(817\)789-8498](tel:(817)789-8498) • Katie@KatieCopeland.com • KatieCopeland.com

□ □ □ □

FEATURED PUBLICATION

[Access Is Not Advantage: Structural Integrity and Disability
Accommodation in State Courts](#)

On Friday, May 8th, 2026 at 9:15 AM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Good morning,

Thank you. Since the setting this afternoon was your request, I am happy to inform Judge Newell that you do not intend to proceed this afternoon.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND “REPLY ALL” WHEN REPLYING.

You don't often get email from katie@katiecopeland.com. [Learn why this is important](#)

EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Wierzbicki,

I have just filed the attached **Notice of Pending Appellate Proceedings, Motion to Continue § 11.102 Hearing Pending Appellate Ruling, and Notice of Conflict Requiring Recusal** in the above-referenced matter. The filing pertains to today's 1:30 p.m. hearing.

In brief, the motion requests that the hearing be continued or reassigned because:

1. The Court of Appeals for the Second District (Case No. 02-24-00278-CV) has accepted a motion specifically to stay this hearing, with a response deadline of May 13 — it has not yet ruled.
2. Judge Newell is a named individual defendant in the related federal civil rights action, *Copeland v. Tarrant County et al.*, No. 26-10389 (5th Cir.), brought by the same litigant whose permission to file is at issue today.
3. My documented disability (SSDI fully favorable decision, April 10, 2026) makes in-person appearance medically harmful. I am requesting remote/telephonic appearance as a reasonable accommodation if the hearing proceeds.

I respectfully ask that you bring this filing to Judge Newell's attention before 1:30 p.m. today. I am available by phone at (817) 789-8498.

Thank you.

- [\(817\) 789-8498](tel:(817)789-8498)
- Katie@KatieCopeland.com
- KatieCopeland.com



FEATURED PUBLICATION

[*Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*](#)

American Bar Association · 2026

From: Katie Copeland <katie@katiecopeland.com>

Sent: Friday, May 8, 2026 8:59 AM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>; Kelly Decker
<kelly@kellydeckerlaw.com>

Subject: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM —
Please Bring to Judge's Attention

From: Michelle Sortor <msortor@wandzlaw.com>

Sent: Friday, May 15, 2026 3:31 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>; Dawn Livingston
<dawnl@kellydeckerlaw.com>

Cc: Katie Copeland <katie@copelandlawtexas.com>; Kelly Decker <kelly@kellydeckerlaw.com>;
Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM —
Please Bring to Judge's Attention

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Friday, May 15, 2026 4:58 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Michelle Sortor <msortor@wandzlaw.com>; Dawn Livingston <dawnl@kellydeckerlaw.com>; Kelly Decker <kelly@kellydeckerlaw.com>; Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Case 236-363132-25 — Notice and Motion Filed re: May 8 Hearing at 1:30 PM — Please Bring to Judge's Attention

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United States Court of Appeals for the Fifth Circuit

Attachment to Appellant's Motion for Reconsideration — May 19, 2026

EXHIBIT C

Order Denying Motion for Permission to Maintain Litigation —

May 18, 2026

Description:

Order signed by the Honorable Kenneth E. Newell, Local Administrative Judge, 233rd Judicial District Court, Tarrant County, Texas, in Copeland v. Decker, Cause No. 236-363132-25. The order denies Appellant's Motion for Permission to Maintain Litigation and dismisses the case on the finding that "no such permission was requested or granted." Judge Newell is a named Defendant-Appellee in this proceeding.

Relevance:

Contains the factually incorrect finding that is the subject of the May 18 development section and illustrates the structural conflict-of-interest that Title II's administrative pathway requirement is designed to prevent. See Motion § III.D.

Attach original document immediately behind this cover sheet.

CASE NO. 236-363132-25

KATHRYN COPELAND,	§	IN THE DISTRICT COURT
Plaintiff	§	
	§	
v.	§	
	§	
KELLY DECKER, individually,	§	236TH JUDICIAL DISTRICT
and d/b/a KELLY DECKER	§	
LAW FIRM, and formerly	§	
d/b/a DECKER POOLE,	§	
jointly and severally,	§	
Defendants	§	TARRANT COUNTY, TEXAS

**ORDER DENYING VEXATIOUS LITIGANT KATHRYN COPELAND'S
MOTION FOR PERMISSION TO MAINTAIN LITIGATION**

After considering the request for prefiling by Kathryn Copeland, a vexatious litigant, to maintain litigation currently pending in the 236th District Court and considering the objections thereto, the Court hereby DENIES the request of Kathryn Copeland.

The Court finds that Kathryn Copeland was found to be a vexatious litigant on January 21, 2025, in cause number 231-686108-20, and a conformed copy of that Order is attached hereto.

The Order signed on January 21, 2025, states in relevant part as follows:

3. Kathryn Copeland is prohibited from filing, pro se, any new litigation in any court in this State without the written permission of the appropriate local administrative judge in the jurisdiction where Ms. Copeland attempts to file such litigation. The local administrative judge may condition permission upon Ms. Copeland furnishing additional security for the benefit of the defendant(s) or any other condition as provided under Chapter 11 of the Texas Civil Practices and Remedies Code.
4. If Kathryn Copeland violates this prefiling order, she will be subject to contempt of court in addition to the other remedies afforded under Chapter 11 of the Texas Civil Practices and Remedies Code.

Texas Civil Practice and Remedies Code §11.101 states:

(a) "A court may, on its own motion or the motion of any party, enter an order prohibiting a person from filing, pro se, a new litigation in a court to which the order applies under this section without permission of the appropriate local

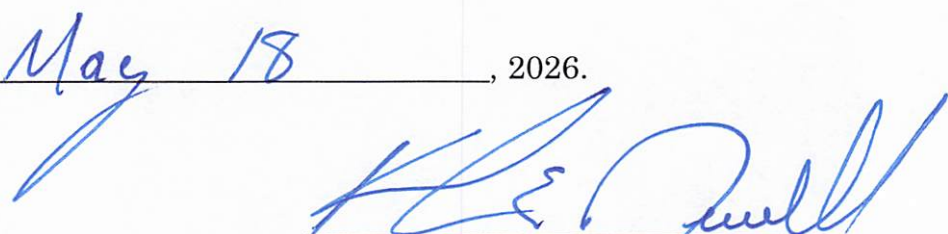
administrative judge described by Section 11.102(a) to file the litigation if the court finds, after notice and hearing as provided by Subchapter B, that the person is a vexatious litigant.

(b) A person who disobeys an order under Subsection (a) is subject to contempt of court..."

The Court finds that by virtue of the Order signed on January 21, 2025, Kathryn Copeland was prohibited from filing new litigation in any court without written permission of the appropriate local administrative judge. The Court further finds that no such permission was requested or granted.

IT IS THEREFORE ORDERED that the request of Kathryn Copeland is hereby **DENIED**, and this matter shall be dismissed, pursuant to the Order signed on January 21, 2025.

SIGNED on May 18, 2026.


KENNETH E. NEWELL
LOCAL ADMINISTRATIVE JUDGE
233RD DISTRICT COURT

231-686108-20

FILED
TARRANT COUNTY
1/22/2025 1:29 PM
THOMAS A. WILDER
DISTRICT CLERK

CAUSE NO. 231-686108-20

IN THE INTEREST OF

QUINN ANNABELLE COPELAND
AND PENELOPE LUCILLE
COPELAND,

MINOR CHILDREN

§
§
§
§
§
§

IN THE DISTRICT COURT

231ST JUDICIAL DISTRICT

TARRANT COUNTY, TEXAS

ORDER DECLARING KATHRYN COPELAND A VEXATIOUS LITIGANT

On December 10 and 13, 2024, the Court heard Christopher Copeland's Motion to Declare Kathryn Copeland a Vexatious Litigant. Due and proper notice of the hearing was given and received as required by the Texas Rules of Civil Procedure and Texas Civil Practice and Remedies Code chapter 11. Based on the pleadings on file, testimony and evidence admitted, and arguments of counsel and parties, the Court **FINDS** as follows:

1. Petitioner Kathryn Copeland meets the criteria to be declared a vexatious litigant under Texas Civil Practices and Remedies Code Chapter 11.
2. There is no reasonable probability that Petitioner will prevail in the litigation filed against Mr. Christopher Copeland.
3. Petitioner has commenced, prosecuted, and/or maintained as a pro se litigant, at least five litigations that were finally determined adversely to her, were nonsuited by her, or that were permitted to remain pending for at least two years without being brought to trial or hearing.
4. Petitioner has also relitigated or attempted to relitigate the same claim, controversy, or issue as to Mr. Copeland after that claim, controversy or issue has been finally determined against Petitioner.

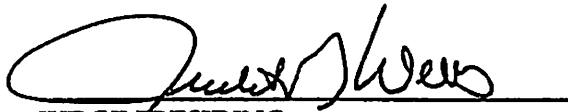
Therefore, the Court **GRANTS** the motion and **ORDERS** as follows:

1. Kathryn Copeland is declared a vexatious litigant for all purposes.
2. Kathryn Copeland is hereby **ORDERED** to furnish security in the amount of ten thousand dollars (\$10,000) by January 31, 2025, to proceed with this case. The purpose of this security is to assure payment of Mr. Christopher Copeland's reasonable expenses incurred in or in connection with the litigation commenced by Ms. Kathryn Copeland, including costs and attorneys' fees. Failure to furnish security as ordered shall result in the dismissal of this case.

3. Kathryn Copeland is prohibited from filing, pro se, any new litigation in any court in this State without the written permission of the appropriate local administrative judge in the jurisdiction where Ms. Copeland attempts to file such litigation. The local administrative judge may condition permission upon Ms. Copeland furnishing additional security for the benefit of the defendant(s) or any other condition as provided under Chapter 11 of the Texas Civil Practices and Remedies Code.
4. If Kathryn Copeland violates this prefilng order, she will be subject to contempt of court in addition to the other remedies afforded under Chapter 11 of the Texas Civil Practices and Remedies Code.
5. The Clerk of the Court is directed to notify the Office of Court Administration of the Texas Judicial System ("OCA") of this Court's declaration of Kathryn Copeland as a vexatious litigant by delivering a copy of this order to the OCA at the following address:

Office of Court Administration
Attention: Judicial Information
P.O. Box 12066 Austin, TX 78711-2066
judInfo@txcourts.gov

Signed: January 21, 2025


JUDGE PRESIDING

Approved as to form:

By: 
Susan F. Smith
State Bar No. 24070644
susan@susansmithfamilylaw.com
ATTORNEY FOR RESPONDENT

No. 26-10389 — Copeland v. Tarrant County, et al.
United States Court of Appeals for the Fifth Circuit

Attachment to Appellant's Motion for Reconsideration — May 19, 2026

EXHIBIT D

Tarrant County Written Admissions — Three Officials, Three Dates

April 1 / April 21 / April 30, 2026

Description:

Three written communications from Tarrant County officials confirming the structural Title II void at issue:

- (1) April 1, 2026 — Email from Travis Yarbrough, Assistant County Administrator: ADA accommodation requests for court proceedings are not the County's responsibility; the matter is "considered closed."
- (2) April 21, 2026 — Open Records Response CDA-2026-897: No designated ADA Title II coordinator for judicial proceedings; no applicable grievance procedures; no compliance audit.
- (3) April 30, 2026 — Response from Tarrant County Criminal District Attorney's Office (Phil Sorrells; Katherine E. Owens): The County has no control over a judge's ADA accommodation decisions; Appellant's concerns are "not properly presented to Tarrant County."

Relevance:

Constitutes the County's own written admissions establishing the structural Title II void. These three documents are cited throughout the motion as the evidentiary foundation for the accommodation-pathway claim. See Motion § II.A (Background).

Attach original document immediately behind this cover sheet.

Re: ADA Justice Issue

From Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov>

To katie@copelandlawtexas.com

Date Wednesday, April 1st, 2026 at 3:03 PM

The presiding Judge over each court is their own decision maker with regards to court proceedings. I am not aware of how each court handles their request once they get notified.

Since it is a court proceeding request and not falling under the County's ADA compliance the response and directing them to the court then considers the matter closed.



Travis Yarbrough

Assistant County Administrator

100 E Weatherford St. Suite 404

Fort Worth, TX 76196

Phone: 817-884-2643

Email: thyarbrough@tarrantcountytx.gov

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, March 30, 2026 4:13 PM

To: Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov>

Subject: Re: ADA Justice Issue

EXTERNAL EMAIL ALERT! Think Before You Click!

Hi Mr. Yarbrough,

Thank you for your response.

This is related in part to my earlier request, but it also concerns an ongoing and active access issue in a current civil matter in the 141st District Court (Cause No. 141-370402-25).

The issue I am encountering is not limited to a single court, but appears to involve a broader gap in how ADA accommodation requests are received, routed, and resolved for court users at the county level.

In my current case, I have made repeated requests for accommodations necessary for meaningful participation due to documented cognitive limitations. However, there has been no clear ADA coordination pathway, no identified decision-maker, and no interactive process through which those requests are evaluated.

As a result, proceedings have continued while access issues remain unresolved.

At this point, I am trying to identify:

- who serves as the appropriate ADA decision-maker for court-user accommodations at the county level;

- how requests are supposed to be processed across courts; and
- how an interactive process is initiated and documented.

If this falls within your scope, I would appreciate your guidance. If not, I would be grateful if you could direct me to the appropriate individual responsible for ADA coordination in this context.

I appreciate your time and your help in clarifying this.

Best regards,

Kathryn "Katie" Copeland
(817) 789-8498

On Friday, March 27th, 2026 at 2:17 PM, Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov> wrote:

Good afternoon Ms. Copeland,

I was given a message that you reached out to our office yesterday concerning an ADA question. I did find a request from you that went to Justice of the Peace court No. 3 earlier this year. Does this happen to be in relation to that request or something entirely different?



Travis Yarbrough

Assistant County Administrator

100 E Weatherford St. Suite 404

Fort Worth, TX 76196

Phone: 817-884-2643

Email: thyarbrough@tarrantcountytx.gov

38.07 KB 2 embedded images

Outlook-eb1xy3s4.png 19.04 KB

Outlook-flwgoutp.png 19.04 KB

Re: Re: Tarrant County District Attorney's Office - Records Request CDA-2026-897 Completed

From Paul Nguyen (Tarrant County, TX) <TarrantCountyTX@request.justfoia.com>

To katie@copelandlawtexas.com

CC pknguyen@tarrantcountytexas.gov

Date Tuesday, April 21st, 2026 at 4:28 PM

Ms. Copeland,

Thank you for following up. We have reached out to various departments and individuals regarding the Title II ADA aspects of your request and unfortunately, we were still unable to locate any responsive information that you are seeking.

Tarrant County District Attorney's Office
401 W. Belknap
Fort Worth, Texas 76196
(817) 884-1233
openrecords@tarrantcountytexas.gov

On Mon, Apr 20, 2026 at 4:25 pm, Katie Copeland wrote:

Thank you. However, I was not referring to the employment aspect of ADA, but rather the Title II aspect of ADA, which applies to counties and courthouses (under the US Supreme Court case of Tennessee v Lane and the 5th Circuit opinion from Luke v Texas). For example, I have attached the City of Fort Worth's compliance documents.

For convenience, I have pasted my original request again below:

Request #CDA-2026-897

I request access to and copies of the following records:

1. ADA Title II Self- Evaluation (28 C.F.R. § 35.105) All records reflecting any self-evaluation conducted by Tarrant County and/or its courts in compliance with 28 C.F.R. § 35.105, including but not limited to: • The original self-evaluation required to be completed by January 26, 1993 • Any subsequent updates, revisions, or re-evaluations • All supporting materials associated with such evaluations
2. Required Components of the Self- Evaluation To the extent maintained, please include records showing: • Lists of individuals and organizations consulted (including disability advocacy groups) • Descriptions of areas examined and barriers identified • Descriptions of modifications made as a result of the evaluation
3. ADA Compliance Infrastructure Records sufficient to show: • The designation of any ADA Coordinator pursuant to 28 C.F.R. § 35.107 • Any ADA grievance procedures maintained by the County or its courts • Policies or procedures related to ADA Title II compliance in court operations
4. Record Retention and Availability • Any record retention policies applicable to ADA compliance documents, including self-evaluations • Any documentation explaining the absence, destruction, or unavailability of responsive records, if applicable _____

If there are no documents or individuals related to these request, please confirm.

Sincerely,
Kathryn "Katie" Copeland



PHIL SORRELLS
Criminal District Attorney
Tarrant County

April 30, 2026

Ms. Kathryn Copeland
Copeland Law
1137 S. Pine Street
Grapevine, Texas 76051

Via E-Mail

Re: Letter dated April 20, 2026 to the County Administrator

Ms. Copeland,

I am in receipt of your correspondence dated April 20, 2026, which was addressed to County Administrator Chandler Merritt. After reviewing this letter and the attached exhibits, I understand you have concerns regarding the provision of ADA accommodations during the course of your family court judicial proceedings.

First, I understand that you requested ADA accommodations from Tarrant County District Court Judges and were dissatisfied with their decisions. As the County communicated to you upon your initial request to the County for judicial ADA accommodations, the County does not have control over a particular state District Court Judge's decision when a litigant seeks ADA accommodations that would modify court proceedings. Such a decision relates to a judge's adjudicative responsibilities and is within a judge's sole discretion. Tarrant County, on the other hand, provides assistance for those with disabilities that prevent them from accessing and navigating the County's physical facilities, programs, services, and activities, whether in person or virtually. While I understand you are frustrated and feel the process is fragmented, your case took place in a state District Court that is located within, but not controlled by, Tarrant County. Thus, concerns with the state court ADA accommodation process are not properly presented to Tarrant County because the County cannot control or change the outcome of your legal proceedings.

Your letter also requests certain documents. It is my understanding that you submitted an open records request that mirrors your request for records in your April 20 correspondence, and

Ms. Kathryn Copeland
April 30, 2026
Page 2

that the open records request was closed on or about April 21, 2026. Thus, you have received the records in the County's possession that are responsive to your request.

Finally, you expressed concerns with the County's Title II compliance. Tarrant County takes its obligations under Title II seriously and remains committed to ensuring all individuals, including those with disabilities, have access to the County. As your frustrations relate to judicial decisions and do not outline any issues accessing County facilities or programs, it does not appear that the County is required to take corrective action based on the allegations you presented.

Thank you for giving us an opportunity to review and address your concerns. If you have any additional questions regarding the County's ADA policies, please contact me directly.

Sincerely,

Phil Sorrells
Criminal District Attorney
Tarrant County, Texas

Katherine E. Owens

KATHERINE E. OWENS
Assistant Criminal District Attorney

KEO/psm

No. 26-10389 — Copeland v. Tarrant County, et al.
United States Court of Appeals for the Fifth Circuit

Attachment to Appellant's Motion for Reconsideration — May 19, 2026

EXHIBIT E

Unauthorized Amicus Brief of Weinstein Corporate Entities — Filed in Decker

May 6, 2026

Description:

Document filed by Glynis L. Zavarelli and Michelle S. Sortor of Wentz & Zavarelli, L.L.P., counsel of record for Weinstein Management Co., Inc. and WMCI Dallas X, LLC, in Copeland v. Decker, Cause No. 236-363132-25, 236th JDC Tarrant County. Filed hours after this Court's May 6, 2026 denial. Styled as an "Amicus Brief to the Court Regarding Kathryn Copeland's Requests for Accommodations Under the ADA." The transmittal letter expressly states the brief's purpose as protecting Weinstein's position in separate adversarial litigation against Appellant.

Relevance:

Foundational evidence for the § 12203(b) interference claim — a nonparty with adverse interests in separate litigation filed an amicus brief targeting Appellant's ADA accommodation rights in a judicial proceeding, using the same structural void that provides no mechanism to exclude it. See Motion §§ I (Introduction), III.A, III.D.

Attach original document immediately behind this cover sheet.

141-370402-25

Wentz & Zavarelli, L.L.P.
Attorneys at Law

Michelle Sortor
(469) 665-9100
msortor@wandzlaw.com

May 6, 2026

Via Electronic Service

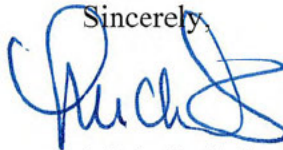
Court Clerk
141st District Court
100 N. Calhoun St. 2nd Floor
Fort Worth, Texas 76196

**Re: Cause No. 141-370402-25; Weinstein Management Co., Inc. and
WMCI Dallas X, LLC, v. Kathryn Copeland; in the 141st Judicial
District Court of Tarrant County, Texas**

Dear Clerk:

Enclosed please find *WMCI, Dallas X, LLC and Weinstein Management Co., Inc.'s Amicus Brief to the Court Regarding Kathryn Copeland's Requests for Accommodations Under the ADA*, filed on May 6, 2026, in Cause No: 236-36312-25; *Kathryn Copeland v. Kelly Decker, Individually and d/b/a Kelly Decker Law Firm and Formerly Decker Pool, Jointly and Severally*; in the 236th District Court of Tarrant County, Texas.

Thank you for your professional courtesy and attention to this matter. If you have any questions or concerns, please do not hesitate to contact me.

Sincerely,

Michelle S. Sortor

MSS/cbc

Via Electronic Service
Kathryn Copeland

Cause No. 236-363132-25

KATHRYN COPELAND,

Plaintiff

v.

**KELLY DECKER, INDIVIDUALLY AND
D/B/A KELLY DECKER LAW FIRM
AND FORMERLY DECKER POOL,
JOINTLY AND SEVERALLY,**

Defendants

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IN THE DISTRICT COURT

236th JUDICIAL DISTRICT

TARRANT COUNTY, TEXAS

**WMCI, DALLAS X, LLC AND WEINSTEIN MANAGEMENT CO., INC.'S
AMICUS BRIEF TO THE COURT REGARDING KATHRYN COPELAND'S
REQUESTS FOR ACCOMMODATIONS UNDER THE ADA**

COME NOW, WMCI, Dallas X, LLC And Weinstein Management Co., Inc., and file this, their Amicus Brief to the Court Regarding Kathryn Copeland's Requests for Accommodations under the Americans with Disabilities Act, and respectfully provide the following to the Court:

I.

INTRODUCTION

Amici in support of this brief are Weinstein Management Co., Inc., and WMCI X, LLC, hereinafter referred to as "Weinstein". Weinstein entities are parties to multiple lawsuits in which Ms. Copeland has either made her purported disabilities a fact question in those lawsuits (by claiming she was discriminated against according to the federal Fair Housing Act), or in which Ms. Copeland has requested (but largely been denied) sweeping requests for accommodations, such that these requests for accommodations fundamentally alter the nature of the services provided by the Court, in that she seeks to dismantle the adversarial process and/or serve to provide Copeland with an unlimited advantage. For instance, requests for accommodations include

hearings by submission only, trial by submission only, the ability to record Court proceedings (separate and apart from the official record), deadlines to be extended, to be appointed counsel, to not have to pay customary fees of litigation, such as cost of transcripts for hearings, refusal to abide by Texas Rules of Civil Procedure, in failing/refusing to appear for her deposition, in refusing to provide discovery responses/answers (even after having been ordered by the Court, and in requesting that any depositions be by written questions only. Ms. Copeland has, further, disregarded and wholly failed to abide by numerous Court orders.

However, while Copeland makes these sweeping accommodations in one court, such requests are not consistent. For instance, Copeland has requested that a pending de novo appeal of a Justice Peace court matter regarding the “repair and remedy” (filed for an apartment unit she did not reside in, which she did not have a valid lease at the time of filing) be considered entirely by submission (without either a jury trial or bench trial) because she was unable to sit up for more than 10 – 15 minutes. See *Emergency Motion for Change of Hearing Format, in Cause No. 2026-001018-2, filed in the County Court at Law No. 2 on March 4, 2026*. On April 24, 2026, she emailed the Court (which, as a represented party, was improper) resurging her requests for accommodation – that she is unable to even sit and be on camera. However, on April 27, 2026, Plaintiff filed a request for a “jury trial on all issues of fact”. See **Exhibit “1”**. It is unfathomable that Copeland contends, on the one hand, that she cannot even sit and be on camera for 15 minutes, but represents to another court in Tarrant County that she is demanding a jury trial (and by implication, that she would be able to proceed with said trial, in person, in front of a jury). These two requests are irreconcilable and cast strong doubt on the veracity of claims made thus far (that she is incapable of participating in in-person hearings or trial).

Weinstein further notes that, although Copeland claims to suffer from disabilities, she has *wholly failed to provide documentation confirming the basis for her disability*. Copeland contends that she suffers from a wide range of psychiatric and physical diseases; however, even if proven, merely having a psychiatric or medical disease does not, per se, make someone disabled, nor does it provide this Court as to any information regarding what accommodations may be required (if any) in evaluating Copeland's requests. Even after litigating matters involving Copeland – across Justice of the Peace, County, and District Courts (and in reviewing state appellate and federal district court/appellate filings) – there remains no identification of what psychiatric or medical disabilities Copeland actually has. Even the determination letter provided by Copeland as to her SSDI status does not indicate what psychiatric and/or medical diagnosis(es) upon which the actual determination is made. *This is crucial in determining the scope of accommodations to which Copeland is entitled (if any)*.

Amici file this brief for two purposes: 1) such that any determination by this Court as to any purported disability of Ms. Copeland should not be construed as a determination for any other purpose [including in the matters Weinstein is litigating] that Copeland suffers from such disability and/or that she is a disabled person, pursuant to the Fair Housing Act (as this remains a question of fact in Weinstein's litigation); and 2) such that any determination of this Court as to any particular accommodation of which Ms. Copeland may be provided in this matter does not serve to deny, defeat, and/or encroach on Weinstein's rights in an appropriately adversarial motion practice, to include participation in in-person Motion practice, for discovery to be conducted according to the Texas Rules of Civil Procedure, and for a fully contested jury trial, pursuant to the Texas Rules of Civil Procedure and subject to Weinstein's rights under the Texas and United States Constitution.

II.

FACTUAL HISTORY

Copeland is a previous tenant of The Bowery at Southside, an apartment complex owned by Defendant WMCI Dallas X, LLC and managed by Weinstein Management Co., Inc, beginning in October 18, 2023; thereafter, Copeland renewed her lease on multiple occasions, the last renewal being May 26, 2025, which provided for an end date to her lease of August 24, 2025. Thereafter, she made no effort to renew her lease (and ultimately Weinstein sent Copeland a Notice of Termination, making clear it was not intending to renew the lease, that her lease would be considered terminated effective October 26, 2025, and making clear she would need to, then, vacate the apartment).

At various points in 2024 and March of 2025, Copeland entered work orders for repairs in her apartment. Each of these repairs were made (promptly and completely) by Weinstein – and Copeland voiced no complaint (in any format, to include additional work orders) regarding any matter in her apartment. This includes a March 5, 2025 complaint that “mold” existed near her doorway. The area was properly cleaned, and Copeland did not report a recurrence of any issue (until June 27, 2025 when she sent a DTPA demand letter to Weinstein).

After March 5, 2025 and before June 27, 2025, Copeland did not advise/inform Weinstein, that she suspected mold, that a guest had allegedly observed “mold” (later determined to be not “mold”), that she had been a medical doctor to be assessed for alleged medical conditions from mold, and/or that she had called a mold assessment consultant to inspect the apartment (failing to obtain Weinstein’s authorization this work which included removing baseboards from the wall in the apartment, i.e., destruction to the unit).

Weinstein's retained expert in this matter has since concluded that neither the apartment itself required professional remediation, as the scope of "mold" discovered in the apartment was not significant, and further concluded that there is no evidence to support a need to professionally clean any of Copeland's personal property.

Copeland indicated to apartment management she did not want to remain in her apartment and Copeland was offered to terminate her lease (at no penalty) on June 30, 2025 but she opted not to do so. Copeland was offered to be transferred to another apartment; and while initially interested, Copeland lost interest in that option when it was made clear that she would have to clean her current apartment (due to the strong smell of pet urine) and it would need to pass an inspection before she could be transferred to a different apartment. Copeland, then, insisted on luxury hotel lodging. Weinstein provided hotel lodging (for which it was not legally required or obligated to provide - based on the lease and/or any other statutory or common law, federal or state) for Copeland from July 14, 2025 to October 26, 2025, with the exception of September 11 or 12 through September 19, 2025, **when Copeland moved back into the apartment.**

From June 27, 2025 through October 2, 2025, Copeland interfered with and/or disturbed the work of mold assessment professionals (after demanding that the apartment be professionally remediated, which was not necessary). Both the mold assessment consultant that Copeland hired, as well as the licensed remediation company hired by Weinstein ultimately terminated the project after Copeland sent DTPA demand letters to them.

When it was determined Copeland had returned to live at the apartment, Copeland was directed, by apartment management on September 12, 2025 (through email correspondence) to not disturb the placement of the containment materials and to not turn on the HVAC (which had been turned off and sealed by), and that management would need to inspect the apartment on September

15, 2025 to ensure containment had not been disturbed and that the HVAC had not been turned on. On September 15, 2025 (and thereafter) Copeland refused to allow management staff into the unit to conduct the inspection and, ultimately, Copeland left the apartment again, on or about September 19/20, after Weinstein agreed to resume luxury hotel lodging.

Weinstein agreed to provide this (because the remediation work to be performed by the second remediation company, was scheduled to begin on September 22, 2025 (of which Copeland was made aware, through correspondence sent on September 15, 2025, sent by the undersigned counsel) and this work would not have been able to take place with Copeland staying there.

With respect to providing for alternative lodging: Copeland lived in 4 or 5-star hotels from July 14 – October 26, 2025, for which Weinstein paid (and during which, it appears that on occasion, Copeland improperly made charges to Weinstein’s credit card) and all the while failing to pay rent to Weinstein through the months of August, September, and October. During the time period of July 14-October 26, 2025, Weinstein also paid for boarding of Copeland’s two dogs (at Copeland’s request, even though the first two hotels: The Nobleman and The Bowie House were pet friendly hotels; Copeland did not want the dogs with her and while they were being boarded, Copeland made no payments for grooming, or even food for the dogs; Weinstein paid for all of this). The amounts paid by Weinstein for luxury hotel lodging exceeded \$40,000.00, and the amount paid for pet boarding (and associated expenses- grooming and food) was approximately \$10,000.00. **Copeland has continued to assert that, because she is “disabled” – Weinstein is required to fully fund her lifestyle, including luxury lodging, transportation, food, clothes, and personal items – from the date her lease expired (October 26, 2025) through trial.**

At various times, through September 22, 2025, Copeland actively interrupted, impeded, delayed and/or prevented Weinstein from remediating the apartment, to include:

- Threatening vendors with DTPA claims (resulting in those vendors, consulting legal counsel and terminating their involvement), reported to TDLR that a vendor was not licensed (which was not true and which caused additional delay while TDLR looked into the complaint, working with the vendor to determine licensure status- which it had all along);
- Refusing to move her items so remediation could begin (noting Copeland called the police when Weinstein maintenance staff moved certain items from one room to another, in mid-August 2025, so that areas for remediation could be accessed – after Copeland refused to cooperate (in violation of her lease agreement; the police determined no criminal activity had occurred);
- Refusing to participate in reaching agreements as to use of a second mold assessment company (to obtain an updated assessment; after her DTPA letter sent to her hired mold assessment consultant resulted in its withdraw from the project; threatening that any remediation constituted criminal trespass and/or “spoliation”;
- Sending a Cease and Desist (which involved engaging an attorney, John Douglas - to send this) which indicated that a federal lawsuit (seeking a temporary restraining order) would be filed against Weinstein, if Weinstein attempted to remediate its own property; and during the time she resided in the apartment September 11/12 through September 19 or 20- refusing to adhere to the directive of the property management – turning on the HVAC (causing a freeze, thaw – and water intrusion – into the apartment, resulting in additional and significant damage to the interior of the apartment, delaying mold remediation efforts and requiring water remediation first).

Copeland’s above chronologized course of conduct necessitated Weinstein filing the current litigation pending in the 141st District Court in Tarrant County – by which it secured a Temporary Restraining Order and Temporary Injunction, permitting Weinstein to complete remediation (which it has now done) and prohibiting Copeland from entering the premises. Copeland remains prohibited from entering the apartment while the apartment is “built back” following remediation.

Copeland was ultimately evicted from the apartment, a determination which is under appeal.

III.

PROCEDURAL HISTORY RELEVANT TO “DISABILITY” CLAIMS

Copeland has requested, as a matter of “accommodation” due to her disability status under either the state/federal Fair Housing Act and/or the Americans with Disabilities Act, that she is entitled to a broad scope of relief, including matters which are clearly outside of any relief contemplated by such statutes (even if she were able to show she is entitled to any relief under same).

Copeland has requested a pre-trial award of damages, consisting of multiple requests for Injunctions/Court Order demanding that Weinstein (without a jury trial on the merits, as it is entitled) provide to Copeland pre-trial monetary awards, for lodging, transportation, food, clothes, replacement of personal property, and medical expenses. Copeland has not shown herself to be in any way more entitled to any particular type of relief than any other personal injury litigant who might have determined to file a lawsuit in Tarrant County, and her requests to be pre-emptively and prematurely awarded personal injury damages, would set a dangerous precedent in which any personal injury litigant would similarly be permitted to apply for and then be pre-awarded damages.

She has also requested that discovery deadlines be extended and/or abated, that she not have to comply with discovery as contemplated by the Texas Rules of Civil Procedure, that motion practice be handled via written submission only, that she be exempted from depositions (by requesting her deposition be taken by written questions only), that she be appointed counsel, and that evidentiary matters be handled by written submission only.

- Lodging (in amounts ranging from \$7,950.00 a month to \$22,000.00 a month) until trial;^{1, 2, 3, 4, 5, 6, 7}
- Per Diem payments for food;⁸
- Clothes;⁹
- Transportation;¹⁰
- Medical Care;¹¹
- No-cost transcripts;^{12, 13}
- Appointment of a “neutral” Mold Assessment Consultant (to avoid payment of any expert fees, in a manner not contemplated in the Texas Rules of Civil Procedure);¹⁴
- Replacement of personal property;^{15, 16, 17, 18}
- Appointment of counsel;^{19, 20, 21}
- Requests to not have to comply with discovery requests and/or deposition notices, or for

¹ Emergency Application for Preservation Order and Temporary Relief, Filed September 29, 2025; Emergency Brief in Support of Temporary Mandatory Injunction, filed October 16, 2025; Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

² Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

³ Verified Motion for Limited Reconsideration, filed November 19, 2025;

⁴ Motion for Statutorily Required Accommodations under Texas Fair Housing Act and Request for Clarifications of Rights, filed December 1, 2025;

⁵ First Amended Motion for Statutorily Required Compliance, filed December 3, 2025;

⁶ Emergency Motion for Clarifying Order, filed December 5, 2025;

⁷ Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment, filed December 29, 2025;

⁸ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

⁹ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹⁰ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹¹ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹² Request for Transcript of October 2, 2025 hearing, filed on October 5, 2025;

¹³ Motion for Transcripts at No Cost, filed March 27, 2026;

¹⁴ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹⁵ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹⁶ Verified Motion for Reconsideration, filed November 19, 2025;

¹⁷ Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment, filed December 29, 2025;

¹⁸ Supplement to Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment, filed January 2, 2026;

¹⁹ Motion for Appointment of Counsel under 42 U.S.C. § 3613(b)(1), filed November 23, 2025;

²⁰ First Amended Motion for Appointment of Counsel, filed December 23, 2025;

²¹ Omnibus Notice of Judicial Unavailability, filed January 2, 2026;

an extended delay in responding to discovery requests;^{22, 23, 24, 25, 26, 27, 28, 29}

- Inappropriate requests targeting counsel for Weinstein;^{30, 31} and
- Summary disposition of all matters by “submission” included questions of fact reserved for a jury determination, and/or matters which required evidentiary hearings (including multiple requests for “emergency” injunctive relief);^{32, 33, 34, 35}

Copeland did not prevail on any of these “requests” for “accommodations”, as such were outside of the relief provided to her under any state or federal disability framework. She treats the consistent denial of these “accommodations” as a concerted effort to deprive her of her perceived disability rights, when in reality, she is not entitled to the relief requested.

As of the filing of this Brief, Copeland has systematically disrupted the litigation process, under the guise of being unable to participate due to purported “disabilities”. Significantly, these disruptions are ongoing, duplicative, and impermissible given that they fundamentally alter the nature and manner of adversarial litigation.

Copeland has failed to provide any evidence in support of her causes of action and/or claims for damages, to include having failed to provide any medical records (which Copeland was ordered by the Court to do, and which she has failed to produce). She has failed to sit for her

²² Motion for Protective Order, filed December 19, 2025;

²³ Motion for ADA Accommodations, filed December 28, 2025

²⁴ Copeland’s Motion for Temporary Stay of Discovery and Depositions, filed February 9, 2026;

²⁵ Request for Continuance and Notice of ADA Barriers, filed March 11, 2026;

²⁶ Plea in Abatement, filed March 26, 2026;

²⁷ Notice of Post-Order Constraints, filed April 12, 2026;

²⁸ Verified Motion for Extension of Deadlines, Clarification of Court Directives, and Related Relief, filed April 13, 2026;

²⁹ Notice regarding ADA Court- Access Compliance and Demand and Request to Consider Transcript-Access Motion Separately and Reset Remaining Submission Matters filed April 24, 2026;

³⁰ Verified Motion to Disqualify Plaintiffs’ Counsel as Material Fact Witnesses, filed on November 27, 2026;

³¹ Motion for Referral to the U.S. Department of Justice and Texas Attorney General for Investigation Pattern-Or-Practice Civil Rights Violation, filed December 1, 2025;

³² Emergency Notice of Medical Inability to Attend and ADA Accommodation Request, filed October 2, 2025;

³³ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

³⁴ Motion for ADA Accommodations, filed December 28, 2025;

³⁵ Omnibus Notice of Judicial Unavailability, filed January 2, 2026;

deposition. She has refused to allow Weinstein to take third-party depositions, and has moved to quash nearly every request Weinstein has made for third-party records. Copeland has, in all manners, refused entirely to participate meaningfully in discovery, and instead, has claimed that she is not required to participate and/or that her participation should be limited, based largely on her disability claims.

IV.

WEINSTEIN'S BRIEF TO THE COURT

Weinstein has, and has had, insufficient information by which to determine whether Copeland has any disability which requires accommodation under Title II of the Americans with Disabilities Act. If Copeland has a disability (which is yet unproven), then the “needs” she asserts under Title II are such that jeopardize Weinstein’s ability to obtain fair and impartial rulings on this matter, and which further implicate a denial of Weinstein’s constitutional rights – including but not limited to the right to a jury trial pursuant to Texas and United States Constitution.

As a preliminary matter, Copeland must show that she is a party to whom the American with Disabilities Act and/or the Fair Housing Act applies. Disability means, with respect to an individual, a physical or mental impairment that substantially limits one or more of the major life activities of such individual; a record of such an impairment; or being regarded as having such an impairment. Major life activities include but are not limited to: caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, sitting, reaching, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, writing, communicating, interacting with others, and working. 28 CFR § 36.105.

The American with Disabilities Acts provides for protection in key areas of (1) employment [Title I]; 2) State and Local Government [Title II]; and 3) Public Accommodations

[Title III].

To make a prima facie showing under Title II of the American with Disabilities Act, a plaintiff must show: “(1) that he is a qualified individual within the meaning of the ADA; (2) that he is being excluded from participation in or being denied the benefits of services, programs, or activities for which the public entity is responsible for, or is otherwise being discriminated against by the public entity; and (3) that such exclusion, denial of benefits or discrimination is by reason of his disability”. *Melton v. Dallas Area Rapid Transit*, 391 F3d 669-671-672 (5th Cir. 2004). Therefore, it is the Plaintiff (claimant) burden to establish each element.

A “disability” under the ADA is “a physical or mental impairment that substantially limits one or more major life activities.” 42 U.S.C. § 12102(1). Major life activities include, but are not limited to, “caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, and working.” 42 U.S.C. § 12102(2)(A).

The ADA, Title II imposes an obligation on a public entity to make “reasonable accommodations” for disabled individuals (42 USC §12131); *Jim Choi v. Univ. of Tex. Health Sci. Ctr. at San Antonio*, 633 F. App’x 214, 215 (5th Cir. 2015). However, the public entity is required to accommodate limitations, not disabilities. *Taylor v. Principal Fin. Grp., Inc.* 93 F3d 155, 164 (5th Cir. 1996). The ADA does not require clairvoyance. *Hedberg v. Ind. Bell Tel. Co.*, 47 F3d 928, 934 (7th Cir. 1995).

While the ADA, Title II (as applied to Courts) is intended to ensure a disabled litigant is afforded due process, due process is guaranteed to every individual (with or without disabilities). *Boddie v. Connecticut*, 401 U.S. 371, 370, 28 L. Ed. 113, 91 S. Ct. 780 (1971). Significantly, as related to providing accommodations for disabled individuals, and in relation to obtaining judicial

services, “Title II does not require States to employ any and all means to make judicial services accessible, or to compromise essential eligibility criteria for public programs. It requires only “reasonable modifications” that would not fundamentally alter the nature of the service provided and only when the individual seeking the modification is otherwise eligible for the service.”. *Tennessee v. Lane*, 541 U.S. 509, 158 L. Ed 2d 820, 124 S. Ct. 1978 (2004).

Though Plaintiff has made continual assertions that she is disabled, citing to various diagnosed conditions (and for which, again, no medical records have ever been provided), her own conclusory statements are not sufficient to meet the first element of finding that a disability exists (per the ADA, when determining what, if any, “accommodations” are necessary and/or reasonable and/or whether there is a legal obligation to provide such). Importantly, that she has represented that she is able to move forward with, and is demanding of, a jury trial shows that she is able to participate, when she desires to, and that she understands how/why a jury trial should be conducted.

Copeland bears the burden of proof to establish she has a qualifying ADA disability and to establish the limitations (as related to the court process and litigation process) that are related specifically to such disability, and she has failed to do either. Copeland has not made a prima facie showing that she is entitled, under the ADA, to obtain any particular “accommodation” and/or “modification”, and/or that any request she has attempted to make is necessary and/or reasonable. Rather, what Copeland has been able to demonstrate, consistent with her Request for a Jury Trial in an ancillary proceeding, is that she is able to conduct litigation activities *when she wishes to*. Since June 27, 2025 (when Copeland first sent her DTPA demand to Weinstein), Copeland has filed in excess of 130 documents in state and federal Court, either as a pro se Plaintiff or cases in which John Douglas was Copeland’s attorney, but which he has admitted in various hearings and pleadings that Copeland wholly or substantially drafted documents which he then signed as

counsel.³⁶ Some of these filings are in excess of 100 pages, including exhibits.

Copeland has provided no legal authority to support what she is requesting as an accommodation or modification. *The accommodations requested by Copeland fundamentally alter the nature of the service provided* by the Court – in that Copeland seeks to litigate outside of the Texas Rules of Civil Procedure and the Tarrant County Local Rules of Civil Procedure. Instead, Copeland seeks a non-adversarial process by which she can choose whether to attend certain hearings and by which she can assert that, when she loses on matters in which her claims/causes of action have no support in fact or in law, that she can instead chose to claim that she was deprived of justice.

Copeland has been able to perform involved functions necessary to maintain a lawsuit: draft pleadings and other documents, read and review materials provided by Court, Weinstein's counsel, and third-parties, attempt to compile evidence, conduct discovery, prepare and present an oral presentation based on her perception of facts/law, and communicate via email and telephone, and use of Zoom technology to appear remotely. Copeland has provided no authority to support her requests that she is entitled to have this matter handled any differently than the Texas Rules of Civil Procedure provide.

³⁶ *In the Interest of Q.C. and P.C.*, on appeal to the Texas Supreme Court, Cause No. 25-0325; Trial Court Cause No. 231-686108-20 (Petition for Writ of Review to Texas Supreme Court denied); *Copeland v. Weinstein Properties/WMCIX, LLC*; JP03-25-SC00028212, in the Justice of the Peace Court No. 3, Tarrant County, Texas (Judgment for Defendant); *Copeland v. WMCIX, LLC*; JP03-25-RR00000029, in the Justice of the Peace Court No. 3, Tarrant County, Texas (Judgment for Defendant); *Copeland v. Decker, et al*; Cause No. 236-363132-25, In the 236th District Court of Tarrant County, Texas (pending Motion to Dismiss); *Copeland v. Tarrant County, Texas, et al*; Cause No. 4-25-CV-0089-O, in the United States District Court for the Northern District of Texas, Fort Worth Division (dismissed with prejudice), now on appeal to the 5th Circuit; and *Copeland v. Nevarez*; and Cause No. 4:25-CV-137, appeal to the U.S. Court of Appeals for the 5th District denied).

Even if Copeland were to make a prima facie showing of any particular impairment/disability, **such cannot be used to deprive Weinstein of its right to a full and vigorous representation by counsel. This includes, but is not limited to, the ability to fully brief the Court, present oral arguments, and conduct discovery, inclusive of depositions.**

With respect to accommodations requested by Copeland from Weinstein, there is no legal authority to support those requests in addition to there being no factual foundation to support those requests. Copeland has not shown that she requires any particular accommodation to alleviate a burden placed on her due to a disability – and has further failed to distinguish any particular claimed disability from the claims for impairment and/or personal injury for which most personal injury litigants in Tarrant County may claim to suffer. What Copeland contemplates is that any injured litigant can and should be granted sweeping accommodations that would dramatically change the manner (and wholly disregard the Texas Rules of Civil Procedure) for which personal injury litigation is handled in Tarrant County.

Texas – and the United States – has a well-defined and established personal injury justice system. This system allows for the prosecution of meritorious claims and defenses, the discovery of admissible evidence, and the determination of liability and damages – if any – after a vigorous and contested adjudication of the matters at issue before a jury. This is the well-established public policy of the law. Weinstein is entitled to due process; Weinstein is entitled to fully litigate its claims and defenses, and should not be bound to only having Motions/matters heard by submission, denied a jury trial, and/or any other “accommodation” that fundamentally alters the prosecution and maintenance of this lawsuit in any manner that deviates from the Texas Rule of Civil Procedure and Tarrant County Local Rules.

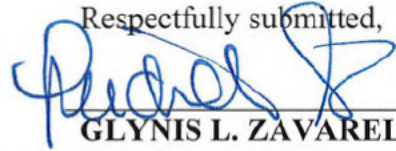
V.

CONCLUSION

Plaintiff has failed to carry her burden in establishing that she has any particular disability, which would entitle her to any accommodation/modification to the judicial and/or litigation process, pursuant to the ADA, Title 11. Further, Plaintiff has failed to carry her burden to establish that the requested accommodation/modification is necessary. Finally, and significantly – Plaintiff has failed to carry her burden to establish that the requested accommodation/modification is reasonable and/or to establish that implementing such would not fundamentally alter the judicial (court) process and/or the litigation process.

Accordingly, Weinstein requests that any determination by this Court as to any purported disability of Ms. Copeland should not be construed as a determination for any other purpose, to include in the matters Weinstein is litigating, that Copeland suffers from such disability and/or that she is a disabled person, pursuant to the Fair Housing Act and/or the ADA (as this remains a question of fact in Weinstein’s litigation). Weinstein further requests such that any determination of this Court as to any particular accommodation of which Ms. Copeland may be provided in this matter does not serve to deny, defeat, and/or encroach on Weinstein’s rights in an appropriately adversarial motion practice, to include participation in in-person Motion practice, for discovery to be conducted according to the Texas Rules of Civil Procedure, and for a fully contested jury trial, pursuant to the Texas Rules of Civil Procedure and subject to Weinstein’s rights under the Texas and United States Constitution.

Respectfully submitted,



GLYNIS L. ZAVARELLI

State Bar No. 00788743

gzavarelli@wandzlaw.com

MICHELLE S. SORTOR

State Bar No. 24056336

msortor@wandzlaw.com

WENTZ & ZAVARELLI, L.L.P.

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

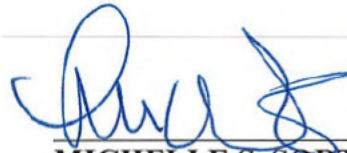
(469) 665-9100 – Telephone

(469) 665-9106 – Facsimile

ATTORNEYS FOR PLAINTIFFS

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing instrument was served on counsel of record this **6th day of May, 2026** in accord with the Texas Rules of Civil Procedure.



MICHELLE S. SORTOR

EXHIBIT “A”

153-355436-24

NO. 153-355436-24**KATHRYN COPELAND,
PLAINTIFF,****v.****JESSICA JANICEK AND
KOONS FULLER, P.C.,
DEFENDENTS.****IN THE DISTRICT COURT****153RD JUDICIAL DISTRICT****TARRANT COUNTY, TEXAS**

Plaintiff's Notice of Jury Demand

TO THE HONORABLE PRESIDING JUDGE:

Plaintiff Kathryn Copeland hereby files this Jury Demand pursuant to Rule 216 of the Texas Rules of Civil Procedure. Plaintiff requests a trial by jury on all issues of fact and has filed a Sworn Statement of Inability to Pay Court Costs regarding the required jury fee.

Respectfully submitted,**KATHRYN COPELAND**

1137 S. Pine Street

Grapevine, Texas 76051

(817) 789-8498

Katie@CopelandLawTexas.com

Plaintiff, Pro Se

CERTIFICATE OF SERVICE

I certify that a true and correct copy of this document was served on all counsel of record in accordance with Texas Rule of Civil Procedure 21a on this April 25, 2026, to:

Robert A. Bragalone and B. Ryan Fellman
bbragalone@grsm.com | rfellman@grsm.com

**KATHRYN COPELAND**

Automated Certificate of eService

This automated certificate of service was created by the eFiling system. The filer served this document via email generated by the eFiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Envelope ID: 114544115

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Filing Description: Correspondence to Court Regarding Weinstein Amicus Brief

Status as of 5/6/2026 11:20 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
Glynis L.Zavarelli		gzavarelli@wandzlaw.com	5/6/2026 11:09:34 AM	SENT
Michelle Sortor		msortor@wandzlaw.com	5/6/2026 11:09:34 AM	SENT
Kathryn Copeland		katie@copelandlawtexas.com	5/6/2026 11:09:34 AM	SENT
Rebecca Young		ryoung@wandzlaw.com	5/6/2026 11:09:34 AM	SENT
Kathryn Copeland		k.m.copeland@tcu.edu	5/6/2026 11:09:34 AM	SENT
Aayush Dhurka		adhurka@wandzlaw.com	5/6/2026 11:09:34 AM	SENT
Courtney Cotten		ccotten@wandzlaw.com	5/6/2026 11:09:34 AM	SENT

No. 26-10389 — Copeland v. Tarrant County, et al.
United States Court of Appeals for the Fifth Circuit

Attachment to Appellant's Motion for Reconsideration — May 19, 2026

EXHIBIT F

SSA Notice of Decision — Fully Favorable (ALJ Laura Roberts)

April 10, 2026

Description:

Social Security Administration Notice of Decision — Fully Favorable, issued by Administrative Law Judge Laura Roberts on April 10, 2026, adjudicating Appellant Kathryn Copeland disabled within the meaning of the Social Security Act with an established disability onset date of June 8, 2023.

Relevance:

Establishes documented disability status with an onset date that predates and covers the entire period of the state-court proceedings in which accommodations were denied. See Motion § II.B (The Appellant).

Attach original document immediately behind this cover sheet.



Office of Hearings Operations
ROOM 9A27
819 TAYLOR STREET
FORT WORTH, TX 76102-6124

Date: April 10, 2026

Kathryn Marie Copeland



Notice of Decision – Fully Favorable

I carefully reviewed the facts of your case and made the enclosed fully favorable decision. Please read this notice and my decision.

Although my decision is fully favorable, you have the right to an oral hearing and to examine the evidence on which I based my decision. Please contact the office listed above if you want to have an oral hearing or examine the evidence in your case record.



See Next Page

Kathryn Marie Copeland (BNC#: [REDACTED])

Page 2 of 3

[REDACTED]

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[REDACTED]
[REDACTED]

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[REDACTED]

[REDACTED]

[REDACTED]

Kathryn Marie Copeland (BNC#: [REDACTED])

Page 3 of 3

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

If You Have Any Questions

1. Visit www.ssa.gov for fast, simple, and secure online service.
2. Call us at **1-800-772-1213**, weekdays from 8:00 am to 7:00 pm. If you are deaf or hard of hearing, call TTY **1-800-325-0778**. Please mention this notice and decision when you call.
3. You may also call your local office at (866) 704-4858.

SOCIAL SECURITY
RM 1-A-07 FEDERAL BLDG
819 TAYLOR ST
FORT WORTH, TX 76102-9844

Laura Roberts
Administrative Law Judge

Enclosures:
Decision Rationale

[REDACTED]

cc: SUSAN HARRIET BAXTER
600 EAST WEATHERFORD
FORT WORTH, TX 76102-3264

**SOCIAL SECURITY ADMINISTRATION
Office of Hearings Operations**

DECISION

IN THE CASE OF

Kathryn Marie Copeland
(Claimant)

(Wage Earner)

CLAIM FOR

Period of Disability, Disability Insurance
Benefits, and Supplemental Security Income

[REDACTED]
(Beneficiary Notice Control Number)

Social Security Number removed for your protection

JURISDICTION AND PROCEDURAL HISTORY

This case is before the undersigned on a request for hearing dated September 15, 2025 (20 CFR 404.929 *et seq.* and 416.1429 *et seq.*). The evidence of record supports a fully favorable decision; therefore no hearing has been held (20 CFR 404.948(a) and 416.1448(a)). The claimant is represented by Susan Baxter, a non-attorney representative (Exhibit 20B).

The claimant has amended the alleged onset date of disability to June 8, 2023 (Exhibit 13D).

FINDINGS OF FACT AND CONCLUSIONS OF LAW

After careful consideration of the entire record, the undersigned makes the following findings:

■ [REDACTED]

■ [REDACTED]
[REDACTED]
[REDACTED].

3. The claimant has the following severe impairments: neoplasm of the brain, long haul Covid, hiatal hernia, postural orthostatic tachycardia syndrome (POTS), Ehlers-Danlos Syndrome (EDS), polyarthralgia, attention deficit hyperactivity disorder (ADHD), [REDACTED]

[REDACTED], intracranial hypotension, [REDACTED]

(20 CFR 404.1520(c) and 416.920(c)).

■ [REDACTED]
[REDACTED]
[REDACTED]

5. [REDACTED]

She can tolerate no concentrated exposure to dust, fumes, odors, gases or other pulmonary irritants. The claimant can understand, remember and carry out detailed, but not complex, instructions. She will be off task 20% of the time, she will need one hour of additional breaks, and she will miss two days of work per month.

In making this finding, the undersigned has considered all symptoms and the extent to which these symptoms can reasonably be accepted as consistent with the objective medical evidence and other evidence, based on the requirements of 20 CFR 404.1529 and 416.929 and SSR 16-3p. The undersigned also considered the medical opinion(s) and prior administrative medical finding(s) in accordance with the requirements of 20 CFR 404.1520c and 416.920c.

The claimant has the following degree of limitation in the four broad areas of mental functioning set out in the disability regulations for evaluating mental disorders and in the mental disorders listings in 20 CFR, Part 404, Subpart P, Appendix 1: a moderate limitation in understanding, remembering, or applying information; a mild limitation in interacting with others; a moderate limitation in concentrating, persisting, or maintaining pace; and a moderate limitation in adapting or managing oneself.

[REDACTED]

After careful consideration of the evidence, the undersigned finds that the claimant's medically determinable impairments could reasonably be expected to cause the alleged symptoms. The claimant's statements concerning the intensity, persistence and limiting effects of these symptoms are reasonably consistent with the medical evidence and other evidence in the record for the reasons explained in this decision.

The intensity of the claimant's physical and cognitive symptoms, and the extent of the alleged functional limitations, are supported by objective findings and the record of medical treatment.

[REDACTED]

Kathryn Marie Copeland (BNC#: [REDACTED])

Page 3 of 8

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

The description of the symptoms and limitations which the claimant has provided throughout the record has generally been consistent and persuasive. Neurology reports from 2025 and 2026 document that the claimant experienced worsening neurological symptoms, severe tremors, postural headache, dizziness and brain fog (Exhibit 68F). She was diagnosed with intracranial hypotension in the setting of EDS and prior trauma, for which additional testing was recommended to assess a possible cerebrospinal fluid leak (Exhibit 68F/10). [REDACTED]

[REDACTED]

See Next Page

[REDACTED]

[REDACTED]

[REDACTED]

The claimant's allegations are supported by multiple doctor statements. Primary care doctor, John Bui M.D. submitted a statement in September 2023 noting diagnoses of ADHD, Covid Long Hauler, POTS disease, and Vestibular schwannoma (Exhibit 25F/2). He noted symptoms of fatigue, poor focus, confusion, dizziness and memory issues, and opined that the claimant required learning accommodations such as a flexible schedule, and more time to complete assignments. In March 2025, Dr. Bui submitted a statement noting diagnoses of vestibular schwannoma, EDS, post covid, and MALS. He opined that the claimant was unable to stand or walk for extended periods due to orthostatic intolerance and EDS-related joint instability; she could not maintain seated positions for extended periods without symptom exacerbation; and she required frequent position changes and rest periods throughout the day. He noted that the claimant experienced unpredictable symptom flares requiring complete rest; she could not reliably sustain concentration for work-related tasks; and she experienced significant post-exertional malaise following minimal physical or cognitive exertion (Exhibit 44F/68). The undersigned finds these opinions persuasive, as they are supported by the objective evidence of joint instability and cognitive impairment.

[REDACTED]

[REDACTED]

[REDACTED]

Dr. Kayster submitted a statement in February 2026 and notes diagnoses of intracranial hypotension and cognitive impairment, with dizziness, imbalance, and positional neurologic symptoms that worsened with upright posture (sitting/standing) and improved with recumbency (Exhibit 69F). He noted objective findings of slowed responses and delayed recall; deficits in sustained attention, selective attention, processing speed, and speeded word retrieval; and abnormal brain MRI findings and neuro-ophthalmology testing. He opined that the claimant required frequent recumbency throughout the day and she could not sustain predictable function for prolonged periods. He found the claimant could sit, stand or walk for less than 2 hours in an 8-hour workday, and she demonstrated marked limitations in areas of memory, concentration and adaptation. The undersigned finds this opinion persuasive as it is supported by objective findings and the history of treatment.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

In summary, the undersigned finds the objective findings are consistent with, and support a limitation to, sedentary exertional activities. The claimant's chronic fatigue, widespread pain, weakness and instability, limit her to lifting up to 10 pounds, limit her to standing/walking for 2 hours in an 8-hour workday and prevent her from crouching, crawling or climbing ladders, ropes or scaffolds. She can occasionally climb ramps/stairs, balance, stoop, and kneel, to avoid exacerbations of pain or fatigue. Due to severe orthostatic intolerance, she cannot perform work involving any exposure to extreme hot temperatures (defined as over 90 degrees), extreme cold temperatures (defined as under 30 degrees), excessive humidity (defined as over 80%), dangerous moving machinery, unprotected heights or vibrations as defined by the SCO. She can tolerate no concentrated exposure to dust, fumes, odors, gases or other pulmonary irritants

Kathryn Marie Copeland (BNC#: [REDACTED])

Page 7 of 8

because of residual Covid symptoms. The claimant can understand, remember and carry out detailed, but not complex, instructions, to account for moderate limitations in her ability to understand, remember and apply information, concentrate, persist or maintain pace, and adapt and manage herself. She will be off task 20% of the time, she will need one hour of additional breaks, and she will miss two days of work per month, because of intracranial hypotension and cognitive impairment.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

10. Considering the claimant's age, education, work experience, and residual functional capacity, there are no jobs that exist in significant numbers in the national economy that the claimant can perform (20 CFR 404.1560(c), 404.1566, 416.960(c), and 416.966).

[REDACTED]

11. The claimant has been under a disability as defined in the Social Security Act since June 8, 2023, the amended alleged onset date of disability (20 CFR 404.1520(g) and 416.920(g)).

DECISION

Based on the application for a period of disability and disability insurance benefits filed on May 28, 2023, the claimant has been disabled under sections 216(i) and 223(d) of the Social Security Act since June 8, 2023.

[REDACTED]

Kathryn Marie Copeland (BNC#:

Page 8 of 8

[REDACTED]

/s/ *Laura Roberts*

Laura Roberts

Administrative Law Judge

April 10, 2026

Date

United States Court of Appeals

FIFTH CIRCUIT
OFFICE OF THE CLERK

LYLE W. CAYCE
CLERK

TEL. 504-310-7700
600 S. MAESTRI PLACE,
Suite 115
NEW ORLEANS, LA 70130

May 21, 2026

Ms. Kathryn Copeland
405 Crawford Street
Apartment 2145
Fort Worth, TX 76104

No. 26-10389 Copeland v. Tarrant County
USDC No. 4:25-CV-890

Dear Ms. Copeland,

We are taking no action on your corrected motion for reconsideration because the motion has been ruled on.

Sincerely,

LYLE W. CAYCE, Clerk

Lisa E. Ferrara

By: _____
Lisa E. Ferrara, Deputy Clerk
504-310-7675

cc:

Mr. Stephen Andrew Lund
Ms. Katherine E. Owens